

July 15, 2009



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 6563
(ELEVENTH REVISION)

EXPIRATION DATE: April 30, 2010

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GTS-WELCO, Praxair Joint Venture
(Former Grantee: GT & S, Inc.)
Morrisville, PA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification cylinders containing Division 2.2 materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302a(a)(1) and § 175.3 in that non-DOT specification cylinders are not authorized, except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

July 15, 2009

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air, compressed	2.2	UN1002	N/A
Oxygen, compressed	2.2	UN1072	N/A

Additionally, non-liquefied, Division 2.2 materials, specifically identified to, and acknowledged in writing by the Office of Hazardous Materials Special Permits and Approvals (OHMSPA) are authorized.

7. SAFETY CONTROL MEASURES: PACKAGING - Prescribed packaging is a non-DOT specification steel cylinder made in compliance with DOT Specification 3E (§§ 178.35 and 178.42) except as follows:

- § 178.42(a) Welded or brazed cylinder not over 90 cu. in. water capacity. (Brazing material must have a melting point above 1000°F.) Longitudinal seams and welded tubing prohibited. Service pressure must be 1800 psig.
- § 178.42(b) Steel: GLX-50-W, or ASTM-A-572 of uniform quality, adequately killed deep drawing quality steel.
- § 178.42(d) Cylinder must be manufactured by best appliances and methods. No defect is permitted that is likely to weaken the finished cylinder appreciably. A reasonably smooth and uniform surface finished is required. Second sentence is deleted.
- § 178.42(f) (2) The cylinder referred to in subparagraph (1) of this paragraph must burst at a pressure higher than 6,000 psi without fragmenting or otherwise showing lack of ductility, and one additional cylinder in the same lot of 500 must be subjected to 3000 psi test and subsequently flattened between flat

July 15, 2009

plates with the circumferential joint at a right angle to the plates. Flattening without cracking to six times the thickness of the seam joint is required.

(3) Other cylinders must be examined under pressure of at least 3000 psig and show no defect. The pressure must be maintained for at least 30 seconds and sufficiently longer to insure complete examination.

§ 178.42(g) All cylinders must be tested for leakage by internal air or gas at 1800 psig following the hydrostatic test. Leakers must be rejected.

§ 178.42(i) Marking: Substitute "DOT-SP 6563-1800" for "DOT 3E1800." All other markings are required. Cylinders and packages marked "DOT SP-6563-1800" prior to issuance of this special permit may be transported under the terms of this special permit.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each cylinder must be secured against rotational movement within the overpack. Cylinders must be shipped in strong outside packagings complying with § 173.301(a)(9).

d. Continued use of cylinders with longitudinal welds and welded tubing is authorized under the following conditions:

- (1) Cylinders manufactured before January, 1980 are no longer authorized and must be removed from service.

July 15, 2009

- (2) Cylinders manufactured after January, 1980 must be removed from service when they reach 15 years of age.
- (3) New construction of cylinders with longitudinal seams and welded tubing is not authorized under this special permit.

e. The transportation of oxygen by aircraft is only authorized when in accordance with § 175.501.

- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft, and passenger-carrying aircraft.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by Federal hazardous materials transportation law 49 U.S.C. 5101 et seq.:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

July 15, 2009

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MT/AM